

# **SPECIAL ISSUE**



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GAZETTE NOTICE No. 1949

## **THE CONSTITUTION OF KENYA**

### **PRESIDENTIAL DECISION MEMORANDUM**

#### **PURSUANT TO ARTICLE 168 (9) (a) OF THE CONSTITUTION**

**IN THE MATTER OF THE TRIBUNAL TO INQUIRE INTO THE CONDUCT OF  
THE HON. JUSTICE MOHAMMED NOOR KULLOW, JUDGE OF THE  
ENVIRONMENT AND LAND COURT OF KENYA**

WHEREAS, Petitions were filed with the Judicial Service Commission by various litigants, including Mara Rafiki Limited, Allan C. Kibet and Wilson N. Naisi, regarding the conduct of Hon. Mr. Justice Mohamed Noor Kullow, Judge of the Environment and Land Court of Kenya ("Hon. Judge");

WHEREAS, the complaints emanated from alleged delay, incompetence and gross misconduct on the part of the Hon. Judge in delivering rulings and judgments while presiding over the Narok Environment and Land Court, and following receipt of the complaints, the Judicial Service Commission resolved to initiate an own motion inquiry on the conduct of the Hon. Judge;

WHEREAS, upon consideration of the complaints, the Judicial Service Commission arrived at a determination that a *prima facie* case had been established against the Hon. Judge on the allegations of gross misconduct, incompetence, misbehavior, and breach of the Judicial Service (Code of Conduct and Ethics) Regulations, 2020, whereupon the Judicial Service Commission, in accordance with Article 168 (4) of the Constitution, transmitted to the President Petitions numbers 129 of 2019, 2 of 2021, 1 of 2023, and 9 of 2022, all dated the 26th February, 2024;

WHEREAS, pursuant to Article 168 (5) of the Constitution, the President, *vide* Gazette Notice No. 2536 of 8th March, 2024, suspended the Hon. Judge from office and appointed a Tribunal to inquire into his conduct; and

WHEREAS, the Tribunal submitted its Report to the President on 3rd February, 2025, and recommended that:

The Hon. Mr. Justice Mohammed Noor Kullow, Judge of the Environment and Land Court, ought to be reinstated to the office of Judge of the Environment and Land Court.

NOW Therefore, and having considered the said Report together with its annexures, I note as follows:

- (a) THAT pursuant to Article 168 (9) of the Constitution, the recommendations of the Tribunal with respect to the Hon. Judge are binding on the President;
- (b) THAT following the lapse of the constitutionally allowable period for appeal against the decision of the Tribunal; and
- (c) THAT having had no party exercise the right of appeal against the decision of the Tribunal,

REASONS Wherefore, I, William Samoei Ruto, President of the Republic of Kenya and Commander-in-Chief of the Defence Forces, by the authority vested in me by the Constitution and the Laws of Kenya, do determine as follows:

- I. THAT in accordance with the recommendations of the Tribunal, the suspension of the Hon. Mr. Justice Mohammed Noor Kullow, Judge of the Environment and Land Court, is lifted; and
- II. THAT the Hon. Mr. Justice Mohammed Noor Kullow is reinstated to Office, and all remunerations and benefits adjusted during the term of his suspension pursuant to Article 168 (6) of the Constitution shall accrue to the Hon. Judge with immediate effect.

Dated the 20th February, 2025.

**WILLIAM SAMOEI RUTO,**  
*President.*